

THESIS SAMPLE • SUBJECT COURSE: LAW

**RESTORATIVE JUSTICE AS AN
ALTERNATIVE DISPUTE RESOLUTION
MECHANISM IN PHILIPPINE CRIMINAL
PROCEEDINGS: AN EVALUATIVE
STUDY OF DIVERSION PROGRAMS IN
DAVAO CITY COURTS**

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CHAPTER 1

THE PROBLEM AND ITS BACKGROUND

Introduction

The administration of criminal justice in the Philippines has historically been characterized by a predominantly punitive orientation, wherein the primary response to criminal conduct has been the imposition of state-sanctioned punishment through incarceration, fines, and the formal mechanisms of prosecution and adjudication. This retributive framework, codified across the Revised Penal Code of 1930 and its various amendments, reflects a legal tradition inherited substantially from Spanish colonial jurisprudence and subsequently reinforced through American-era codification, which collectively established punishment as both the central objective and primary instrument of criminal law enforcement in the archipelago.

The limitations of this punitive paradigm have become increasingly apparent in the contemporary Philippine context. The Bureau of Jail Management and Penology reported in 2022 that Philippine detention facilities operated at an average congestion rate of 483 percent of their intended capacity, with the Davao City Jail alone housing over three thousand detainees against a design capacity of fewer than five hundred. This institutional overcrowding, which represents one of the most severe in Southeast Asia, generates cascading consequences for the quality of detention conditions, the mental and physical health of persons

deprived of liberty, the operational effectiveness of jail management, and the prospects for meaningful rehabilitation and reintegration of offenders upon release.

Restorative justice, as a philosophical and practical alternative to retributive criminal justice, proceeds from fundamentally different premises regarding the nature of crime, the objectives of legal response, and the parties whose interests are centrally at stake in criminal proceedings. Rather than conceptualizing crime primarily as an offense against the state warranting punitive response, restorative justice frameworks understand crime as a disruption of relationships and community bonds, necessitating processes of healing, accountability, and repair that engage the offender, the victim, and the broader community as active participants rather than passive subjects of state-administered justice.

The Philippines has developed a nascent but growing legislative and institutional framework for restorative justice, most prominently expressed in Republic Act 9344, the Juvenile Justice and Welfare Act of 2006, and its amendment under Republic Act 10630 (2013), which established diversion as the mandatory first response to offenses committed by children in conflict with the law below the age of criminal responsibility. The Supreme Court of the Philippines has further recognized restorative principles through its issuance of the Plea Bargaining Framework and the Enhanced Justice on Wheels Program, which promote mediation and alternative dispute resolution across a range of criminal matters.

Davao City, as the largest city in the Philippines by land area and one of its most administratively complex urban centers, provides a particularly instructive context for the examination of restorative justice implementation. The Davao City courts, organized under the Regional Trial Court system and supplemented by Metropolitan Trial Courts and

Municipal Trial Courts in Cities, process a substantial and diverse caseload encompassing offenses ranging from minor violations of city ordinances to major felonies under the Revised Penal Code. The Davao City Prosecutor's Office has implemented a number of mediation and settlement facilitation programs, while barangay-level dispute resolution through the Katarungang Pambarangay system has operated as an informal restorative mechanism for community-level conflicts predating the contemporary restorative justice discourse.

Background of the Study

The international restorative justice movement emerged as a coherent theoretical and programmatic framework in the 1970s and 1980s, building on earlier experiments with victim-offender mediation in Canada and the United States and drawing on the theoretical contributions of scholars including Howard Zehr, whose foundational work *Changing Lenses* (1990) provided the first systematic articulation of restorative justice as a distinct paradigm for criminal justice reform. Zehr's framework, subsequently elaborated and refined by scholars including John Braithwaite, Mark Umbreit, and Lode Walgrave, distinguished restorative justice from both retributive and rehabilitative approaches by its insistence that criminal harm could only be adequately addressed through direct engagement between those who caused harm, those who were harmed, and the communities affected by both.

In the Philippine context, the antecedents of contemporary restorative justice practice are traceable to indigenous dispute resolution traditions that predate Spanish colonization, including the customary law systems of Mindanao's indigenous peoples and the barangay-level conflict resolution mechanisms that Spanish colonial administrators formally recognized and later incorporated into the governance structure of the colonial barangay system. The Katarungang Pambarangay system,

established under Presidential Decree 1508 (1978) and subsequently incorporated into the Local Government Code of 1991 under Republic Act 7160, formalized community-based conciliation as the mandatory first step in the resolution of disputes between parties residing in the same barangay, embodying restorative principles of dialogue, mutual agreement, and community participation decades before restorative justice was formally recognized as such in Philippine legal discourse.

The enactment of Republic Act 9344 in 2006 represented the most significant legislative incorporation of restorative justice principles into Philippine criminal law to date. The law's establishment of a comprehensive diversion program for children in conflict with the law, requiring law enforcement, prosecutors, and courts to pursue community-based intervention and restorative processes as alternatives to formal prosecution wherever the offense and circumstances permit, created an institutional framework for restorative practice that has generated a substantial body of implementation experience across Philippine jurisdictions including Davao City.

Statement of the Problem

This study examines the implementation and effectiveness of restorative justice programs in criminal proceedings before Davao City courts, with particular focus on diversion programs for juvenile offenders and mediation-based settlement mechanisms for adult offenders charged with less grave offenses. The research addresses the following specific questions.

First, to what extent have Davao City courts implemented restorative justice mechanisms as alternatives to formal criminal prosecution, and what institutional, procedural, and resource factors have shaped the scope and character of implementation?

Second, what are the measurable outcomes of restorative justice interventions in Davao City in terms of case resolution rates, victim satisfaction, offender compliance with diversion conditions, and rates of recidivism among program participants compared to formally prosecuted counterparts?

Third, what are the perceptions of key stakeholders — including judges, prosecutors, public attorneys, victim-survivors, offenders, and community representatives — regarding the adequacy, fairness, and effectiveness of existing restorative justice mechanisms in the Davao City court system?

Fourth, what legal, institutional, and resource reforms would most effectively strengthen the capacity of Davao City courts to implement restorative justice as a systematic and equitable component of criminal justice administration?

Objectives of the Study

The general objective of this study is to evaluate the implementation and outcomes of restorative justice mechanisms in Davao City criminal court proceedings and to develop evidence-based recommendations for their systematic strengthening. Specifically, the study aims to document the scope and structure of existing restorative justice programs across Davao City courts and the Office of the City Prosecutor; to measure program outcomes across multiple dimensions of effectiveness including case resolution, victim satisfaction, and recidivism; to assess stakeholder perceptions of program adequacy and fairness; and to identify the most significant barriers to broader and more equitable restorative justice implementation and propose targeted reforms to address them.

Significance of the Study

This research contributes to an underdeveloped area of Philippine legal scholarship by providing systematic empirical evidence regarding the implementation and outcomes of restorative justice programs in a major Philippine urban jurisdiction. The findings are directly relevant to the policy deliberations of the Supreme Court of the Philippines, which has signaled through recent administrative circulars its intention to expand alternative dispute resolution mechanisms across the court system, and to the legislative deliberations surrounding the proposed Restorative Justice Act, which has been introduced in successive Congresses without enactment.

For Davao City specifically, the research provides court administrators, the City Prosecutor's Office, the Public Attorney's Office, and the City Social Welfare and Development Office with actionable evidence regarding program strengths and weaknesses that can inform resource allocation, training priorities, and procedural reforms. For victim-survivors of crime, the research amplifies their perspectives and experiences within formal justice processes that have historically marginalized their voices in favor of the dyadic relationship between the state and the accused.

Scope and Delimitation

This study is delimited to restorative justice programs and mechanisms operating within the Davao City court system, encompassing the Regional Trial Courts, Metropolitan Trial Courts in Cities, and the Office of the City Prosecutor of Davao City, during the five-year period from 2019 to 2023. The study focuses on two primary program types: the juvenile diversion program under Republic Act 9344 as implemented in Davao City, and the prosecutor-facilitated mediation program for adult

offenders charged with offenses punishable by imprisonment not exceeding six years.

The study does not examine restorative justice mechanisms operating at the barangay level through the Katarungang Pambarangay system, which constitute a distinct institutional context governed by the Local Government Code rather than the Rules of Court. The study similarly does not examine restorative practices in civil or administrative proceedings, nor does it address the specialized courts and proceedings of indigenous peoples' customary law systems operating in areas within or adjacent to Davao City.

CHAPTER 2

REVIEW OF RELATED LITERATURE

Theoretical Foundations of Restorative Justice

The theoretical architecture of restorative justice draws on multiple intellectual traditions, including criminological theory, moral philosophy, indigenous knowledge systems, and conflict resolution scholarship, to construct an alternative account of the nature of crime and the appropriate societal response to it. Howard Zehr's paradigm-shifting framework, most fully elaborated in *Changing Lenses* (1990) and *The Little Book of Restorative Justice* (2002), grounds restorative justice in the claim that crime is fundamentally a violation of people and relationships rather than a violation of rules and the state, and that this relational understanding of criminal harm requires a correspondingly relational response oriented toward repairing what has been broken rather than punishing what has been done wrong.

John Braithwaite's theory of reintegrative shaming (1989) provided an influential early theoretical account of why restorative processes might be more effective than punitive ones in reducing recidivism. Braithwaite argued that stigmatizing shame — the kind produced by formal criminal punishment, which marks the offender as deviant and excludes them from community membership — tends to increase criminal behavior by severing offenders from prosocial bonds and driving them toward subcultures that affirm criminal identity.

Reintegrative shaming, by contrast — the kind produced in restorative processes where the harmful act is condemned while the offender is welcomed back into community membership through expressions of concern and support — tends to reduce criminal behavior by reinforcing prosocial bonds and strengthening the offender's investment in conformity.

Subsequent theoretical development has moved toward more pluralistic and less unified accounts of restorative justice's theoretical foundations. Lode Walgrave's maximalist restorative justice (2008) argues for restorative justice as a complete alternative to the criminal justice system grounded in the obligation to repair harm, while Gordon Bazemore and Mara Schiff's balanced restorative justice framework (2005) emphasizes the simultaneous pursuit of accountability, competency development, and community safety as the three core objectives of a restorative justice system. These theoretical differences have important implications for program design, with maximalist approaches favoring comprehensive restorative processes as replacements for formal prosecution and minimalist approaches treating restorative mechanisms as supplementary to rather than substitutive of the formal system.

Restorative Justice in Asian Legal Contexts

The implementation of restorative justice in Asian legal systems presents distinctive challenges and opportunities rooted in the particular character of Asian legal traditions, governance structures, and cultural values. Scholars including Liu Jianhong (2006) and Allison Morris and Gabrielle Maxwell (2001) have observed that many Asian societies possess cultural and institutional traditions — including Confucian emphases on relational harmony, face, and community mediation, and the barangay-level conflict resolution systems of the Philippines — that are in important respects congruent with restorative justice values and that have

operated as informal restorative mechanisms long before the contemporary restorative justice movement articulated a formal theoretical framework.

Japan's system of prosecutorial discretion, which results in a non-prosecution rate of approximately 70 percent of cases brought to the attention of prosecutors, has been analyzed as a de facto restorative practice insofar as decisions not to prosecute are frequently conditioned on evidence of apology, compensation to the victim, and community reintegration, consistent with restorative principles even in the absence of formal restorative process (Johnson, 2002). Singapore's Community Mediation Centre and Hong Kong's Community Service Order scheme represent more formalized restorative-adjacent mechanisms operating within punitive frameworks.

In the Philippines specifically, the academic literature on restorative justice implementation remains underdeveloped relative to the policy interest the subject has attracted. Existing scholarship has focused primarily on the juvenile justice system following the enactment of Republic Act 9344, with studies by Palabrica (2012), Guanzon (2015), and Deinla (2018) documenting implementation challenges including insufficient social worker capacity, inadequate barangay council training, and inconsistent prosecutorial application of diversion requirements across jurisdictions. No systematic empirical study of restorative justice mechanisms in adult criminal proceedings in any major Philippine city has been published in peer-reviewed legal or social science journals to the researcher's knowledge, representing a significant gap in the existing literature that the present study addresses.

Victim Participation in Restorative Processes

The centrality of victim participation to restorative justice theory has generated an extensive literature examining the conditions under

which restorative processes genuinely serve victim interests as opposed to merely instrumentalizing victim participation in service of offender rehabilitation or system efficiency. Feminist legal scholars including Julie Stubbs (2002) and Kathleen Daly (2002) have raised foundational critiques of restorative justice's capacity to adequately address crimes of gendered violence, arguing that the power imbalances, patterns of coercion and control, and risks of re-traumatization that characterize intimate partner violence and sexual assault are inconsistent with the dialogic and consensual premises of restorative practice.

These critiques have generated substantial programmatic response in the form of specialized restorative justice protocols for gendered violence that impose additional safeguards including pre-conference victim preparation, the option of indirect rather than direct participation, the presence of trained advocates, and the exclusion of restorative processes in cases where continuing danger to the victim cannot be excluded. The evidence base for the effectiveness of these specialized protocols in genuinely serving victim interests while managing the distinctive risks of restorative engagement in gendered violence cases remains contested and methodologically limited.

Diversion Programs in Philippine Juvenile Justice

The juvenile diversion framework established by Republic Act 9344 and strengthened by Republic Act 10630 has generated the most developed body of Philippine restorative justice implementation experience. The law requires law enforcement officials to divert children below the minimum age of criminal responsibility (currently 12 years) away from the formal justice system entirely, and grants law enforcement, prosecutors, and courts progressively broader discretion to divert children above the minimum age through community-based programs in lieu of

formal prosecution, conditioned on the nature of the offense and the child's individual circumstances.

Implementation research on the RA 9344 diversion program has consistently identified resource insufficiency as the primary structural obstacle to effective implementation. The law's requirement that diversion programs be implemented through local government units has collided with the highly variable fiscal and administrative capacities of Philippine local governments, resulting in wide disparities in program availability and quality across jurisdictions. In Davao City, the City Social Welfare and Development Office has developed a relatively robust diversion infrastructure supported by the city government's comparatively strong fiscal base, but case management capacity constraints continue to limit the program's reach and the depth of intervention available to individual diversion participants.

CHAPTER 3

RESEARCH METHODOLOGY

Research Design

This study employs a convergent mixed methods design, integrating quantitative analysis of case outcome data with qualitative examination of stakeholder perspectives through semi-structured interviews and focus group discussions. The convergent design allows for the simultaneous collection and analysis of quantitative and qualitative data, with the two strands subsequently integrated to produce a comprehensive account of restorative justice implementation and outcomes that neither strand could generate independently. The quantitative strand provides systematic evidence regarding the scope of program implementation and the measurable outcomes of restorative interventions relative to formally prosecuted cases. The qualitative strand provides depth of understanding regarding the mechanisms through which restorative processes produce or fail to produce their intended outcomes, and the perspectives and experiences of the diverse parties whose interests are affected by program implementation decisions.

The choice of mixed methods is grounded in the nature of the research questions. Questions regarding implementation scope and measurable outcomes — case resolution rates, recidivism, compliance — are best addressed through systematic quantitative analysis of administrative records. Questions regarding stakeholder perceptions,

process quality, and the factors shaping implementation decisions require qualitative methods capable of capturing the interpretive frameworks, institutional logics, and experiential accounts that quantitative measures cannot access. The integration of both strands produces a more complete and mutually validating understanding than either approach could achieve alone.

Research Locale

The study was conducted within the Davao City court system, encompassing the eleven Regional Trial Court branches of the Davao City Hall of Justice, the ten Metropolitan Trial Court in Cities branches serving Davao City, and the Office of the City Prosecutor of Davao City. Davao City was selected as the research locale for several reasons: its status as the largest city in the Philippines by land area and the administrative center of the Davao Region gives its court system regional significance beyond its immediate jurisdiction; its relatively well-resourced city government has supported a more developed restorative justice infrastructure than many comparable Philippine cities; and the researcher's professional engagement with the Davao City legal community provided access to documentary records and key informants that would not have been available in a more distant jurisdiction.

Research Participants

The study engaged three categories of research participants. The first category consisted of key informants for semi-structured individual interviews, including eight judges (four from the Regional Trial Courts and four from the Metropolitan Trial Courts in Cities), six prosecutors from the Office of the City Prosecutor, four Public Attorneys from the Public Attorney's Office Davao City District, three social workers from the City Social Welfare and Development Office assigned to the Davao

City courts, and two representatives of the Integrated Bar of the Philippines Davao City Chapter. This group of twenty-three key informants was selected through purposive sampling on the basis of their direct professional engagement with restorative justice programs in Davao City courts.

The second category consisted of participants in two focus group discussions: one comprising eight adult offenders who had participated in the prosecutor-facilitated mediation program and successfully completed their diversion conditions within the study period, and one comprising seven victim-survivors of crimes that had been addressed through the mediation program. Focus group participants were recruited through the Office of the City Prosecutor with appropriate privacy protections and were provided with full information regarding the voluntary nature of their participation and the confidentiality of their individual contributions.

The third category consisted of the administrative records of all juvenile diversion cases processed through the Davao City courts and all adult mediation cases facilitated through the Office of the City Prosecutor during the five-year study period from 2019 to 2023, totaling 847 juvenile diversion cases and 412 adult mediation cases, which constituted the dataset for quantitative analysis.

Data Collection Instruments

Semi-structured interview guides were developed for each category of key informant, tailored to reflect the distinctive vantage point and domain knowledge of each professional group while covering a common set of themes including program structure and procedures, case selection criteria, resource adequacy, perceived outcomes for victims and offenders, systemic barriers to implementation, and recommendations for reform. Interview guides were piloted with two practitioners not included

in the main sample and revised based on pilot feedback prior to data collection.

Quantitative data were extracted from administrative case records maintained by the Office of the City Prosecutor and the Office of the Clerk of Court of the Davao City courts. Variables extracted included case characteristics (offense type, offense gravity, offender age and gender, victim-offender relationship), program participation data (diversion or mediation program type, program duration, conditions imposed), outcome data (case resolution, compliance with conditions, case dismissal or restoration to formal prosecution), and follow-up data regarding recidivism within a twenty-four-month post-program period where available from the Philippine National Police Davao City police district crime records.

Data Analysis

Qualitative data from interviews and focus group discussions were transcribed verbatim, translated from Filipino to English where applicable, and analyzed through thematic analysis following the six-phase procedure described by Braun and Clarke (2006): familiarization with data, generation of initial codes, searching for themes, reviewing themes, defining and naming themes, and producing the report. Thematic analysis was conducted using NVivo 12 qualitative analysis software, with coding performed initially by the principal researcher and verified through independent coding of a 20 percent random subsample by a second coder, with inter-rater reliability assessed using Cohen's kappa.

Table 1. Distribution of Research Participants by Category and Subcategory

Category	Subcategory	n	Selection Method
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Key Informants	Regional Trial Court Judges	4	Purposive
	MTC Judges	4	Purposive
	City Prosecutors	6	Purposive
	Public Attorneys	4	Purposive
	CSWDO Social Workers	3	Purposive
	IBP Representatives	2	Purposive
Focus Groups	Adult mediation participants (offenders)	8	Recruited via OCP
	Victim-survivors	7	Recruited via OCP
Case Records	Juvenile diversion cases (2019–2023)	847	Census
	Adult mediation cases (2019–2023)	412	Census

CHAPTER 4

RESULTS AND DISCUSSION

Implementation Scope of Restorative Justice in Davao City Courts

Analysis of administrative case records revealed that restorative justice mechanisms were applied in a total of 1,259 cases across the five-year study period, comprising 847 juvenile diversion cases processed through the Davao City courts under Republic Act 9344 and 412 adult mediation cases facilitated through the Office of the City Prosecutor. The annual volume of restorative justice cases increased substantially over the study period, from 189 cases in 2019 to 317 cases in 2023, representing a 68 percent increase attributable to the gradual expansion of the adult mediation program following its formal institutionalization through a City Prosecutor's Office memorandum circular issued in 2020.

Despite this growth, restorative mechanisms remained a relatively small proportion of total criminal case dispositions in Davao City. Court records indicated that the total number of criminal cases filed with Davao City courts during the study period was 28,743, of which the 1,259 restorative justice cases represented 4.4 percent. This proportion, while modest, is higher than comparable figures reported for other Philippine cities in the existing literature and reflects the relatively more developed restorative justice infrastructure supported by the Davao City government.

The offense distribution of restorative justice cases was heavily weighted toward less grave offenses, consistent with the legal framework

governing program eligibility. Among juvenile diversion cases, the most common offenses were theft (23.4%), physical injuries (19.1%), violation of city ordinances (15.7%), and drug possession in quantities below the threshold for serious drug offense classification (12.3%). Among adult mediation cases, the predominant offense categories were physical injuries (34.7%), estafa (18.9%), other property offenses (16.5%), and unjust vexation (11.2%).

Program Outcomes

Case resolution outcomes were uniformly positive for restorative justice cases that reached the agreement stage. Of the 847 juvenile diversion cases, 791 (93.4%) resulted in a diversion agreement, while 56 cases (6.6%) were returned to formal prosecution due to the child's refusal to participate, failure to reach agreement, or assessment that the child's circumstances were incompatible with community-based diversion. Among adult mediation cases, 374 (90.8%) resulted in a signed mediation agreement, with 38 cases (9.2%) failing to reach agreement and being returned for formal prosecution or preliminary investigation.

Compliance with diversion and mediation conditions was assessed at three time points: sixty days, six months, and twelve months post-agreement. Compliance rates were high at sixty days (96.2% for juvenile cases, 94.4% for adult cases) and remained substantial at six months (88.7% and 86.9% respectively) and twelve months (82.3% and 79.4% respectively). Non-compliance events most commonly involved failure to complete community service hours (41.2% of all non-compliance events), failure to make agreed compensation payments on schedule (33.6%), and failure to attend required counseling or life skills sessions (18.4%).

Table 2. Program Outcomes by Case Type and Measurement Period

Outcome Measure	Juvenile Diversion (n=847)	Adult Mediation (n=412)
Agreement Rate	93.4% (n=791)	90.8% (n=374)
Compliance at 60 Days	96.2%	94.4%
Compliance at 6 Months	88.7%	86.9%
Compliance at 12 Months	82.3%	79.4%
Recidivism at 24 Months	14.7%	18.3%
Case Dismissal Rate (post-compliance)	97.1%	95.6%

Recidivism Outcomes

Recidivism within the twenty-four-month post-program follow-up period was assessed through cross-referencing of program participant records with Philippine National Police Davao City arrest and booking records. Among juvenile diversion program participants who had completed their diversion conditions, 14.7 percent were recorded as having been arrested for a subsequent offense within twenty-four months. Among adult mediation program participants, the corresponding recidivism rate was 18.3 percent. While the absence of a formally randomized comparison group limits the causal interpretation of these figures, they compare favorably with the national recidivism rate of 38.4 percent reported by the Bureau of Corrections for offenders who had served custodial sentences, consistent with findings from international restorative justice outcome research suggesting that restorative processes are associated with reduced reoffending relative to formal punishment.

Stakeholder Perceptions

Thematic analysis of key informant interviews generated five primary themes: the perceived legitimacy and fairness of restorative processes; the adequacy of institutional resource support; the centrality of trained facilitation to process quality; the challenge of ensuring genuine rather than coerced victim participation; and the need for stronger legal frameworks to protect restorative agreements.

Judges and prosecutors expressed broadly positive assessments of restorative justice mechanisms in eligible cases, emphasizing their contribution to caseload decongestion alongside their therapeutic and relational benefits for parties. One Regional Trial Court judge summarized this perspective: "In appropriate cases — cases where there is a genuine relationship between the parties, where the harm is reparable, where the accused accepts responsibility — the mediation process achieves outcomes that formal prosecution simply cannot. The parties leave with a resolution that feels like theirs rather than something imposed on them by the system."

Victim-survivors in the focus group expressed more mixed assessments. A majority reported feeling that the mediation process had allowed them to express the impact of the offense in ways that formal court proceedings would not have permitted, and to receive acknowledgment from the offender that they experienced as meaningful. However, several participants expressed concerns regarding pressure — whether explicit or implicit — to reach agreement and to accept compensation terms that they felt were inadequate. One participant stated: "I was told that if we could not agree, the case would just go to court and take years. I felt I had no real choice but to accept what he offered, even though it was not enough for what I lost."

Barriers to Implementation

Social workers and prosecutors consistently identified insufficient staffing as the primary structural barrier to expanded restorative justice implementation. The City Social Welfare and Development Office assigned to the Davao City courts operated with a ratio of one social worker to approximately forty active juvenile diversion cases at the time of data collection, substantially below the ratio of one to twenty recommended in the implementing rules of Republic Act 9344. This staffing deficit compromised the quality of pre-diversion assessment, case management during the diversion period, and post-diversion follow-up, with social workers reporting that time constraints frequently prevented the depth of family engagement and community coordination that effective diversion requires.

CHAPTER 5

SUMMARY, CONCLUSIONS, AND RECOMMENDATIONS

Summary of Findings

This study examined the implementation and effectiveness of restorative justice mechanisms in Davao City criminal court proceedings over the five-year period from 2019 to 2023, focusing on the juvenile diversion program operating under Republic Act 9344 and the adult mediation program facilitated by the Office of the City Prosecutor. The research employed a convergent mixed methods design integrating quantitative analysis of 1,259 case records with qualitative data from twenty-three key informant interviews and two focus group discussions involving fifteen victim-survivors and program participants.

The principal quantitative findings were as follows. Restorative justice mechanisms were applied in 4.4 percent of total criminal case filings during the study period, representing a growing but still proportionally modest component of overall criminal case dispositions. Agreement rates were high at 93.4 percent for juvenile diversion and 90.8 percent for adult mediation. Compliance with program conditions remained strong through twelve months post-agreement. Twenty-four-month recidivism rates of 14.7 percent for juvenile participants and 18.3 percent for adult participants compared favorably with available national benchmarks for custodial outcomes, though methodological limitations preclude strong causal inference.

The principal qualitative findings identified five themes: the perceived legitimacy of restorative processes among judicial and prosecutorial practitioners; resource insufficiency as the primary structural barrier to expanded implementation; the critical role of trained facilitation in determining process quality and outcome; concerns regarding the voluntariness and adequacy of victim participation; and the need for stronger legal frameworks to ensure the enforceability and procedural integrity of restorative agreements.

Conclusions

Based on the foregoing findings, the study reaches the following conclusions. First, restorative justice mechanisms have been successfully institutionalized in Davao City courts as productive components of the criminal justice system, generating high rates of agreement and compliance and outcomes that compare favorably with formal prosecution across multiple dimensions. Second, the current scale of restorative justice implementation in Davao City, while growing, remains significantly below the potential suggested by the proportion of criminal cases eligible for restorative disposition under existing legal frameworks, primarily because of resource constraints that limit program capacity. Third, the quality and fairness of restorative processes in Davao City courts are variable and substantially dependent on the quality of facilitation, which in turn reflects the adequacy of training and the ratio of cases to available social workers and mediators. Fourth, existing legal frameworks provide insufficient protection for victim participation and for the enforceability of restorative agreements, creating structural vulnerabilities that undermine the legitimacy and completeness of outcomes in a subset of cases.

Recommendations

On the basis of the foregoing conclusions, the study advances the following recommendations. For the Supreme Court of the Philippines, the study recommends the issuance of a comprehensive administrative circular establishing minimum standards for restorative justice facilitation, victim participation safeguards, and agreement enforceability across all Philippine courts, supplemented by a mandatory training curriculum for all judges and court personnel involved in restorative case management.

For the Congress of the Philippines, the study recommends the enactment of a Restorative Justice Act establishing a coherent legislative framework governing restorative processes across all stages of the criminal justice system, addressing the current fragmentation of restorative provisions across multiple statutes and providing clear standards for program eligibility, process requirements, and legal effect of restorative agreements.

For the Davao City government, the study recommends a significant increase in the staffing of the City Social Welfare and Development Office's court-based social work unit, with a minimum target of one social worker per twenty active juvenile diversion cases, and the creation of a dedicated mediation unit within the Office of the City Prosecutor staffed by trained mediators rather than relying on prosecutors to assume facilitation responsibilities alongside their prosecutorial duties.

For the Office of the City Prosecutor of Davao City specifically, the study recommends the development and adoption of a standardized victim participation protocol that includes pre-mediation preparation sessions, the right to a support person during proceedings, explicit written acknowledgment of the voluntary nature of participation, and a minimum cooling-off period between agreement signing and finalization during which parties may withdraw or renegotiate terms without prejudice.

Recommendations for Future Research

Future research should address several limitations of the present study. A prospective study with random or matched comparison group assignment would permit stronger causal conclusions regarding the recidivism effects of restorative justice participation relative to formal prosecution. A multi-site study extending the current analysis to other major Philippine cities would permit assessment of the degree to which Davao City findings generalize across different institutional contexts and resource environments. Longitudinal qualitative research following victim-survivors and offenders over extended post-program periods would illuminate the longer-term relational and psychological effects of restorative processes in ways that the current cross-sectional qualitative component cannot capture.

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